

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 11, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Cook, and pursuant to support received by Mr. White and Mr. Johnson, items #17 & 18 were removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. Cook, item #24(a) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 26, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 923.93 acres of land located south of I-80 adjacent to Roundtop Road. Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comment or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending certain sections of Chapter 44, Solid Waste, and Chapter 56, Noise Control, of Title 8, Health and Safety, and further amending certain sections of Chapter 8, Offenses Against Public Peace and Decency, and Chapter 12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate the potential imposition of a jail sentence for violation of specified code provisions. Reporting for Finance Committee, Dr. Aldrich advised there was no recommendation from committee. Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Dr. Aldrich moved to amend by substitute dated February 27, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Dr. Rinne moved to amend by striking “shall” and adding “should to the maximum extent practical” to #6 on page 5, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body. Dr. Aldrich moved to amend by striking “and sanitary” in lines 2 & 3 in #4 on page 4, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. Main motion as amended by substitute, as twice amended carried. Voting “yes” – all members of the governing

body. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson and Dr. Rinne. (#4553)

ORDINANCE – 3rd READING – Creating Section 2.40.100, Public Defender and Representation of Needy Persons; Determination of Need, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, Specifying Public Defender Appointment Procedures and Standards for Representation in the Municipal Court. Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve on third reading, seconded by Mr. White. Dr. Aldrich moved to amend by substitute dated February 27, 2024, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson. (#4554)

ORDINANCE –2nd READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, modifying specified enforcement provisions regarding vehicle impoundment. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. Laybourn.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of West 5th Street between Patton Avenue and Snyder Avenue – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business for land annexed to the City of Cheyenne located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business to AG Agricultural and LI Light Industrial for land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Approving the Department of Energy Efficiency and Conservation Block Grant Program Grant for lighting upgrades for the Cheyenne Civic Center. Motion (per Consent Agenda) carried. (#6389)

[CA] RESOLUTION – Expressing the support of the Governing Body for City staff to review and rewrite the City’s Parking ordinances for the purpose of introducing Paid On-Street Parking in Downtown Cheyenne and directing City staff to submit the ordinance rewrite for Governing Body consideration. Motion (per Consent Agenda) carried. (#6390)

[CA] RESOLUTION – Expressing the support of the Governing Body for an Action Plan to address deficiencies regarding sidewalks in the Downtown Development District. Motion (per Consent Agenda) carried. (#6391)

RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of Federal Assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in the purchase of snow removal equipment. Dr. Aldrich moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Tim Bradshaw, Director of Aviation, Cheyenne Regional Airport. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson. (#6392)

RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of Federal Assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in Cheyenne Regional Airport's Master Plan and Airport Layout Plan. Dr. Aldrich moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#6393)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Authorizing the Mayor to execute an amendment to the Development Agreement between the Board of County Commissioners of Laramie County, Wyoming, the City of Cheyenne, and COLL-IND, LLC regarding the Niobrara Energy Park – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for North Row, City of Cheyenne, Laramie County, Wyoming (located at 4612 Van Buren Ave) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] Agreement between the City of Cheyenne and Whitney Ranch Third & Fourth Filing, LLC for a temporary construction easement for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (in an amount not to exceed \$250.00). (#7924)

[CA] Agreement between the City of Cheyenne and Benjamin D. Ward and Kimberly Ann Ward for a temporary construction easement at 4608 James Drive for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (in an amount not to exceed \$250.00). (#7925)

[CA] Agreement between the City of Cheyenne and Jeff Trefren and Katrina Crossland for a temporary construction easement at 5700 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (in an amount not to exceed \$250.00). (#7926)

[CA] Agreement between the City of Cheyenne and Jeff T. Trefren for a temporary construction easement at 5708 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (in an amount not to exceed \$250.00). (#7927)

[CA] Agreement between the City of Cheyenne and Braidon Myers and Heather Myers for a temporary construction easement at 5420 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (in an amount not to exceed \$250.00). (#7928)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center, Volunteers of America, Healthworks, Community Action of Laramie County, Wyoming Department of Corrections, Laramie County Sheriff's Office, District Attorney, Drug Court and Treatment Court Programs, Laramie County and the Office of the State Public Defender for the Laramie County Law Enforcement Assisted Diversion (LEAD) Program Policy Coordinating Group – referred to Finance Committee.

[CA] Consideration of Bid #S-1-24 for an agreement between the City of Cheyenne and Reiman & Aztec JV Limited Partnership, for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund, American Rescue Plan Federal Recovery Funds and Developer Joint Projects). Motion (per Consent Agenda) carried (in an amount not to exceed \$9,287,323.65). (#7929)

[CA] Consideration of Bid #S-11-24 for an agreement between the City of Cheyenne and Mechanical Systems, Inc., for the Cheyenne Sanitation Transfer Station - Lift Station Installation Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$111,417.00). (#7930)

Consideration of Bid #E-12-24 for multiple twenty (20) passenger buses for the City of Cheyenne Transit Program (Transit Program Funds). Dr. Aldrich moved to accept the bid from Model 1 Commercial Vehicles, Inc., dba Creative Bus Sales, Inc., in an amount not to exceed \$1,661,767.40, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body.

Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk's Office. Dr. Aldrich moved to approve, seconded by Mr. White.

Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Mike Moser, Wyoming State Liquor Association. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson and Mr. Roybal.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 6, 2024 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Pinedale, Wyoming – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held March 25, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk’s Office for Rebecca Andrew Ventures, Inc. d/b/a Mr. Jim’s Pizza, 4001 Laramie St., Unit A, Cheyenne, WY.

Under other business:

Mr. Esquibel noted the motion to adopt the following Resolution - Requesting that the Wyoming State Legislature consider legislation authorizing the sale of alcoholic beverages with an alcohol by volume of 5% at grocery stores and convenience stores throughout the state, failed at the February 26, 2024 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. Esquibel moved to reconsider the vote taken on the resolution, seconded by Mr. Johnson. Motion to reconsider carried. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal. Voting “no” – Dr. Aldrich, Mr. Laybourn, Mr. Segrave and Mr. White. Dr. Rinne moved to postpone to March 25, 2024, seconded by Mr. Johnson. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. White voting “no”. During public comment, Dr. Rinne called a point of order related to comments not being made by the public. Public comment was made by: Mike Moser, Wyoming State Liquor Association. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Esquibel and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:13 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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